

23STCV15524 23STCV15524

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Case Number: 23STCV15524 Hearing Date: June 29, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV15524

STACIE

OLIVARES v. SUMA WEALTH, INC. et. al.

June

29, 2026

8:30

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NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT. PLAINTIFF'S MOTION TO SEAL EXHIBITS
IN SUPPORT OF MOTION TO ENFORCE SETTLEMENT.

RULING:

The Court denies the
Motion to Enforce Settlement.

The Court denies the
Motion to Seal.

I.
BACKGROUND

On July 3, 2023, STACIE
OLIVARES (Plaintiff) filed the Complaint against SUMA WEALTH, INC. and BEATRIZ
ACEVEDO (Defendants), having causes of action for:

1.
WHISTLEBLOWER RETALIATION IN VIOLATION OF LABOR CODE § 1102.5;
2.
WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY;
3.
FAILURE TO PAY ALL WAGES DUE INCLUDING AT TERMINATION AND FOR WAITING TIME
PENALTIES (LABOR CODE §§ 201-204);
4.
FAILURE TO PAY MINIMUM WAGE IN VIOLATION OF LABOR CODE § 1194;
5.
FAILURE TO FURNISH WAGE & HOUR STATEMENTS (LABOR CODE §§ 226 AND 226.3);
6.
FRAUDULENT INDUCEMENT/PROMISSORY FRAUD;
7.
PROMISSORY ESTOPPEL;
8.
BREACH OF CONTRACT;
- 9.

FALSE PROMISE;

10.

NEGLIGENT MISREPRESENTATION;

11.

VIOLATION OF LABOR CODE § 2802; and

12.

DECLARATORY RELIEF.

Plaintiff alleges that she was employed by Defendants in 2022, and Defendants wrongfully terminated her employment after she protested against their unlawful conduct.

By Motion filed May 20, 2026, Plaintiff seeks to enforce a settlement agreement as a judgment, notwithstanding the parties' eventual failure to agree to a finalized agreement.

Additionally, by an unopposed Motion to Seal, Plaintiff seeks to seal settlement agreement content, based upon the agreement's confidentiality provisions.

In opposition to the Motion to Enforce Settlement Agreement, Defendants essentially contend that the parties never assented to settle, but instead there was delay and exchanging of counteroffers containing material changes to prior offers.

II.

LEGAL STANDARD

A. Settlement
Enforcement

Courts are empowered to enter judgments pursuant to oral settlements made before the court or written settlements signed by the parties. (Elyaoudayan v. Hoffman (2003) 104 Cal.App.4th 1421, 1428; Code Civ. Proc., § 664.6.) In deciding motions made under section 664.6, judges "must determine whether the

parties entered into a valid and binding settlement.” (Kohn v. Jaymar-Ruby (1994) 23 Cal.App.4th 1530, 1533.) In deciding whether to enforce a settlement, courts have the power to decide disputed facts, and to interpret the agreement. (Fiore v. Alvord (1985) 182 Cal.App.3d 561, 566.) Determinations that parties entered into a binding settlement agreement are upheld if they are supported by substantial evidence. (In re Marriage of Assemi (1994) 7 Cal.4th 896, 911.)

B. Sealing Orders

A “court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties”. (In re Marriage of Nicholas (2010) 186 Cal.App.4th 1566, 1578 [quoting Cal. Rules of Court, rule 2.551(a)].) More than an agreement to seal filed documents is required—there also must be “a specific showing of serious injury.” (McNair v. Nat’l Collegiate Athletic Assn. (2015) 234 Cal.App.4th 25, 35.)

Analogously, prohibiting relevant discovery based upon a confidentiality agreement is against public policy involving a litigant’s interest in litigating the merits, or the public interest in the free flow of information in court, particularly where serious misconduct is alleged. (See Home Ins. Co. v. Superior Court (1996) 46 Cal.App.4th 1286, 1293 [confidentiality provision in settlement agreements and public policy considerations favoring settlement did not override litigant’s right to disclosure]; Vons Cos. v. United States Fire Ins. Co. (2000) 78 Cal.App.4th 52, 65 [“discovery about the ... settlement would have been proper, despite the ... confidentiality provisions.”].) Discovery of private settlement records from another lawsuit is allowable if a compelling need is shown. (Hinshaw et al. v. Superior Court (1996) 51 Cal.App.4th 233, 241, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) Settlement agreements are discoverable, where they could lead to admissible evidence. (Norton v. Superior Court (1994) 24 Cal.App.4th 1750, 1761.)

“[W]hen the court denies or denies in part the request to seal, and the submitting party elects not to have its provisionally sealed documents become a part of the record, the court must return the lodged documents as required by rule 2.551(b)(6).” (Regents of the Univ. of Cal. v. Superior

Court (2013) 222 Cal.App.4th 383, 409.) If a court denies a request to seal, and returns documents lodged provisionally under seal to a submitting party electing not to have it be part of the record, the court may be required to evaluate a ruling again, without basing it on those documents. (Ibid.)

III.

ANALYSIS

Plaintiff argues that the parties agreed settlement terms, as stipulated in a writing, signed and on the court record, such that the settlement is enforceable by way of motion pursuant to Code of Civil Procedure section 664.6.

Defendants counterargue that: "Plaintiff's own evidence confirms that Plaintiff delayed in executing a settlement agreement for more than eighteen months, the Parties exchanged multiple materially different drafts, and subsequently never executed any agreement. Section 664.6 does not authorize courts to manufacture contracts out of negotiations, nor to impose one party's preferred draft where mutual assent was never reached." (Opposition, 2:6-11.)

Plaintiff's Reply includes the points that:

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Defendants conceded the case is settled and all material terms are agreed. (E.g., Joint Stipulation at 2, filed 3/21/25; Karen Luh Declaration, filed 6/9/26, ¶¶ 10, 14.)

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Plaintiff's motion asks the Court to enforce the initial settlement agreed to at mediation, not the full text agreement (Motion, Exhibit C).

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Defendants do not assert that Plaintiff's modifications are disagreeable, nor do they explain how these modifications are material modifications.

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The delay between withdrawal and substitution of counsel, and continued litigation activity, do not indicate any failure to settle on all material terms.

“When parties intend that an agreement be binding, the fact that a more formal agreement must be prepared and executed does not alter the validity of the agreement.” (Blix Street Records, Inc. v. Cassidy (2010) 191 Cal.App.4th 39, 48. Accord, J.B.B. Inv. Partners Ltd. v. Fair (2019) 37 Cal.App.5th 1, 12.)

In deciding a motion pursuant to section 664.6, judges may receive evidence, determine disputed facts including the terms the parties previously agreed upon, and enter the terms of a settlement agreement as a judgment, but may not create new material terms. (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360 (Osumi).)

“A settlement agreement, like any other contract, is unenforceable if the parties fail to agree on a material term or if a material term is not reasonably certain.” (Lindsay v. Lewandowski (2006) 139 Cal.App.4th 1618, 1622-1623. Accord, Levitz v. The Warlocks (2007) 148 Cal.App.4th 531, 535; Weddington Prods., Inc. v. Flick (1998) 60 Cal.App.4th 793, 810.) A “settlement in principle” means the parties have not fixed material terms, such that it is not binding unless and until that happens. (Levitz v. The Warlocks (2007) 148 Cal.App.4th 531, 534–535.) In contrast, contracts will be enforced if they are sufficiently definite for ascertaining the parties' obligations even if courts must fill in some minor gaps. (Estate of Thottam (2008) 165 Cal.App.4th 1331, 1340; Ersa Grae Corp. v. Fluor Corp. (1991) 1 Cal.App.4th 613, 623.) The modern trend is to favor holding settlement agreements enforceable notwithstanding claimed uncertainty unless the uncertainty prevents the court from knowing what to enforce. (Bowers v. Raymond J. Lucia Companies, Inc. (2012) 206 Cal.App.4th 724, 736.) A Court held that a settlement agreement providing that, “counsel ‘will prepare a Release of All Claims form....’” was sufficiently certain for enforcement of the release provision. See (Stewart v. Preston Pipeline Inc. (2005) 134 Cal.App.4th 1565, 1586.)

Distinguishably, the Osumi opinion, *supra*, approved of enforcement of a last-minute counteroffer, as clearly

involving no material change from agreed terms, whereas this matter includes evidence of ongoing counteroffers of material terms well beyond the original proposal after mediation. And the mutually cited Smith opinion distinguishably held, “by proceeding with the tort claim, plaintiffs elected to withdraw their claim that a settlement had been entered. They cannot now revive that claim.” (Smith v. Golden Eagle Ins. Co. (1999) 69 Cal.App.4th 1371, 1376.)

Here, the opposing Declaration of Karen Luh, filed June 16, 2026, supports the Court’s finding that the parties never agreed to all material terms in their repeated attempts at counteroffers on material terms.

Additionally, as for sealing, the Court has found no agreement to settle, and Defendants’ repudiation of any agreement, such that the proffered basis does not serve as a basis to seal, where confidentiality provisions are nonbinding and therefore general settlement policy would not be served. (In re Marriage of Burkle (2006) 139 Cal.App.4th 712, 751 [contract repudiation excuses performance of confidentiality obligations].) See also Universal City Studios v. Superior Court (2003) 110 Cal.App.4th 1273, 1283-1284 [a confidential settlement or other confidentiality agreement cannot qualify for sealing absent a showing of a substantial probability that the party would be prejudiced such that it constitutes an overriding interest].) And the general policy favoring settlements of disputes may not prevail, depending upon other factors. (E.g., Cariveau v. Halferty (2000) 83 Cal.App.4th 126, 136.)

IV.

CONCLUSION

The Court denies both motions.